

Tentative Rulings for June 23, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG00055	<i>Nieves Flores Amado v. Odyssey Agricultural Development LLC</i> is continued to Tuesday, July 21, 2026, at 3:30 p.m. in Department 501.
24CECG00735	<i>Specialty Capital, LLC v. Joel Lorona</i> is continued to Tuesday, August 4, 2026, at 3:30 p.m. in Department 501.
24CECG02305	<i>Matthew Lieb v. Elizabeth Flores</i> is continued to Tuesday, August 4, 2026, at 3:30 p.m. in Department 501.
25CECG00676	<i>George Capelle v. Robert Saldivar</i> is continued to Tuesday, July 28, 2026, at 3:30 p.m. in Department 501.
25CECG05886	<i>Breanna Hubbard v. Agemark Corporation</i> is continued to Tuesday, August 4, 2026, at 3:30 p.m. in Department 501.

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Tentative Ruling

Re: ***NNN Capital Fund I, LLC v. Bmark 2018-B7 East Street, LLC***
Superior Court Case No. 25CECG05615

Hearing Date: June 23, 2026 (Dept. 501)

Motion: Demurrer to First Amended Complaint and Motion to Strike

Tentative Ruling:

To sustain the demurrer without leave to amend. (Code Civ. Proc., § 430.10, subd. (e).) To take the motion to strike off calendar as moot in light of the ruling on the demurrer. Within seven days of service of the order by the clerk, moving party shall submit to this court a proposed judgment dismissing the action. To grant moving party's requests for judicial notice, and overrule all objections thereto.

Explanation:

In this action plaintiffs NNN Capital Fund I, LLC and CAP Fund E Street Investors LLC (collectively, "Capital Fund") assert various claims against Bmark 2018-B7 East Street, LLC ("Bmark"). Capital Fund allege standing in the First Amended Complaint ("FAC") as junior lienholders in relation to the property and loan at issue. They obtained junior lienholder status as holders of an over \$20,000 judgment, with recorded abstracts, against Key Island LLC and its members Todd Mikles ("Mikles") and Kingfisher Island Inc.

Bmark's moving papers establish, and plaintiffs in the opposition do not substantively dispute, that the judgment upon which their lienholder status was based has been vacated. Plaintiffs' basis for standing is its status as a junior lienholder on the subject property, arising from the judgment plaintiffs obtained from the Orange County Superior Court in *NNN Capital Fund I, LLC v. Mikles*, Case No. G064487 (Super. Ct. No. 30-2017-00910991) ("Orange County Case") which confirmed an arbitration award against Mikles. After being unable to collect on the Judgment against Mikles, Capital Fund obtained an order in the Orange County Case to add Key Island as a judgment debtor, and it then recorded a judgment lien against the subject property on or about September 18, 2025.

Mikles appealed the confirmation of the arbitration award and resulting judgment. The Fourth District Court of Appeals in a published opinion vacated the arbitration award and remanded for factual findings regarding whether the individuals purporting to act on behalf of plaintiffs had standing to sue and enforce an arbitration award against Mikles. Finding that standing was not established before the trial court, the appellate court vacated Capital Fund's arbitration award and judgment, and remanded the case to the trial court to determine whether the liquidating trustees had standing to assert Capital Fund's claims against Mikles. (*NNN Capital Fund I, LLC v. Mikles* (2026) 119 Cal.App.5th 1200.)

Capital Fund's status as lienholder pursuant to this judgment lien is the entire basis for their standing to pursue claims against Bmark in this action. (FAC ¶ 1, 7.) Plaintiffs argue

A lien therefore cannot exist apart from the judgment upon which it is based. Thus, in the ordinary course of events when the judgment is vacated by court order the lien will also cease to exist, because the effect of a vacating order is to eliminate the judgment. (*Lantz v. Vai* (1926) 199 Cal. 190, 193 [248 P. 665].) Once vacated, the status of the parties that existed prior to the judgment is restored and the situation then prevailing is the same as though the order or judgment had never been made. (*Sherwin v. Southern Pacific Co.* (1914) 168 Cal. 722, 724 [145 P. 92].) (*Bulmash v. Davis* (1979) 24 Cal.3d 691, 697.)

While it is correct that the Orange County Superior Court cannot act upon the appellate decision until remittitur issues, this principle does not resurrect Capital Fund's alleged basis for legal standing. Whichever court has jurisdiction over the Orange County Case at this moment, it is clear that plaintiffs have no judgment giving them status as junior lienholder.

As plaintiffs have lost their standing, the demurrer must be sustained. No leave to amend is granted because plaintiffs have suggested no way in which they might assert any claim against Bmark without junior lienholder status.

Issued By: KCK on 06/22/26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Seaberg v. Specific Properties, LLC, et al.***
Superior Court Case No. 20CECG00012

Hearing Date: June 23, 2026 (Dept. 501)

Motion: by Defendants' for Charging Order

Tentative Ruling:

To grant defendants' Robert E. Ellis, Stephen D. Long and John S. Foggy's motion for a charging order against plaintiff/cross-defendant Jeffrey Seaberg's interest in Seaberg Construction, LLC. (Code Civ. Proc. § 708.310; Corp. Code § 17705.03.)

Explanation:

Under Code of Civil Procedure section 708.310, "If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor's interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor's interest pursuant to Section 15907.03, 16504, or 17705.03 of the Corporations Code." (Code Civ. Proc., § 708.310.)

In addition, under Corporations Code section 17705.03, "On application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on a judgment debtor's transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor." (Corp. Code, § 17705.03, subd. (a).)

Here, Jeffrey Seaberg together with John S. Foggy and Robert E. Ellis formed Specific Properties, LLC. Seaberg has received a money judgment against him in favor of Foggy, Ellis, and Long in the amount of \$627,046.31 with 10% interest accrual rate per annum. (Cuttone Decl., ¶ 2; RJN, Ex. 1.) The judgment includes an award of costs to Foggy, Ellis, and Long in the amount of \$56,714.19 as prevailing parties on the Seaberg's derivative complaint. (Long Decl., ¶ 4; Ellis Decl., ¶4; Cuttone Decl., ¶ 2, RJN, Ex. 1.) Seaberg does not dispute that the judgment is unpaid and defendants and cross-complainants are entitled to an order charging Seaberg's interest in Specific Properties, LLC. Seaberg raises several errors in the proposed order and indicated the proposed order fails to account for the pending appeal of the costs award portion of the judgment. In reply, defendants submit an amended proposed charging order incorporating the corrections proposed by Seaberg. With respect to the pending appeal, Seaberg has not given an undertaking to stay enforcement of the money judgment while the appeal is pending. (Code Civ. Proc., § 917.1, subd. (a)(1).) Moreover, defendants have demonstrated there is no risk of overpayment in the event the award of costs is reversed. (Ellis Reply Decl., ¶ 4.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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(Judge's initials) (Date)

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Tentative Ruling

Re: **Brooke Rafferty v. Fred Faieta, Jr.**
Superior Court Case No. 23CECG01755

Hearing Date: June 23, 2026 (Dept. 501)

Motion: Defendant, Marielle Faieta's Motion to Strike Plaintiffs,' Sandy Rafferty and Brooke Rafferty's Second Amended Complaint, and to Dismiss this Action

Tentative Ruling:

To grant defendant, Marielle Faieta's motion to strike plaintiffs', Sandy Rafferty and Brooke Rafferty's second amended complaint, without leave to amend.

To grant defendant, Marielle Faieta's motion to dismiss this action.

Explanation:

Defendant, Marielle Faieta ("Faieta" or "defendant") moves to strike plaintiffs, Sandy Rafferty and Brooke Rafferty ("Rafferty's" or "plaintiffs") second amended complaint. ("SAC.")

On December 11, 2025, the Court sustained Faieta's demurrer to the entirety of Rafferty's first amended complaint. (FAC.") The Court's ruling provides in pertinent part:

Accordingly, the demurrer to the entire complaint is sustained on the ground that the action is time barred. Leave to amend is granted to allow plaintiffs an opportunity to plead facts to state a claim for account stated or establish that the events that occurred on August 19, 2019 constitutes a new or continuing contract against defendant Marielle Faieta only.

On December 19, 2025, plaintiffs filed their SAC.

The court may strike a pleading that is not drawn or filed in conformity with the laws of the state, a court rule or an order of the court. (Code Civ. Proc., §§435, 436.) "A court is not required to tolerate purported amended complaint that fails to amend previous pleading, is not filed in good faith, is filed in disregard of established procedural requirements, or is otherwise violative or orderly judicial administration." (*Tostevin v. Douglas* (1958) 160 Cal.App.2d 321, 331, quoting *Neal v. Bank of America National Trust & Savings Association* (1949) 93 Cal.App.2d 678, 682-683.) A motion to strike is properly granted where a plaintiff continues to plead the same allegations to which prior demurrers have been sustained, without attempt to cure. (*Kronsberg v. Wershow* (1965) 238 Cal.App.2d 170, 172-173; *Taliaferro v. Prettnner* (1955) 135 Cal.App.2d 157, 159.)

First, the SAC continues to name Fred Faieta, Jr. This is improper as plaintiffs were only granted leave to file a complaint against Marielle Faieta.

Accordingly, the Court strikes the entire action as to Fred Faieta, Jr.

Second, plaintiffs' SAC does not address any of the issues for which the Court allowed plaintiffs the opportunity to amend their complaint. Furthermore, the SAC fails to state any cognizable causes of action.

Accordingly, Faieta's motion to strike plaintiffs' SAC is granted.

Leave to amend should be granted where there is a “reasonable possibility the pleading can be cured by amendment.” (*Brenner v. City of El Cajon*, B (2003) 113 Cal.App.4th 434, 444.) Here, plaintiffs’ have not opposed this motion, and have not met their burden of demonstrating that the pleading can be cured. Accordingly, leave to amend is denied.

Code of Civil Procedure section 581, subdivision (f)(3), states that the Court may dismiss an action against a defendant “[a]fter a motion to strike the whole of a complaint is granted without leave to amend and either party moves for dismissal. Accordingly, Faieta’s motion to dismiss this action is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/22/26
(Judge's initials) (Date)